



CHAPTER 1.

An Act to confirm a Scheme made by a Committee of the Lords of His Majesty's Privy Council under the Municipal Corporation Acts 1882 and 1885 relating to Buxton. A.D. 1916.
[23rd August 1916.]

WHEREAS under the authority of the Municipal Corporation Acts 1882 and 1885 a Committee of the Lords of His Majesty's Privy Council have settled the scheme set out in the schedule to this Act and by reason of a petition against that scheme having been received by the said Committee that scheme requires the confirmation of Parliament: 45 & 46 Vict.
c. 50.
48 & 49 Vict.
c. 38.

And whereas it is expedient that the said scheme should be confirmed by Parliament in manner and form as set out in the schedule to this Act:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The scheme set out in the schedule to this Act is hereby confirmed and all the provisions thereof in manner and form as set out in that schedule shall have full force. Confirmation
of scheme in
schedule.

2. On any adjustment which is required by reason of anything in or done in pursuance of any provisions of the said scheme the like provision shall be made for the payment to any authority of such sum as seems equitable in respect of any increase of burden which will properly be thrown on the ratepayers of the area of that authority as is required to be made by section one of the Local Government (Adjustments) Act 1913 on any adjustment to which that section applies. Application
of 3 & 4
Geo. 5. c. 19.

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Borough to
be part of
administra-
tive county
of Derby for
purposes of
Diseases of
Animals
Acts 1894 to
1914.

3. The council of the borough of Buxton when constituted shall not exercise any powers or duties or be subject to any liabilities in relation to the execution of the Diseases of Animals Acts 1894 to 1914 but all the powers duties and liabilities in respect of such matters shall be exercised by and attached to the county council of the administrative county of Derby and the area of the borough shall for all purposes of the said Acts form part of the county in like manner as if it were not a borough.

Short title.

4. This Act may be cited as the Municipal Corporations (*Buxton Scheme Confirmation*) Act 1916.

SCHEDULE.

A.D. 1916.

BUXTON SCHEME.

WHEREAS by the Municipal Corporation Acts 1882 and 1885 it is enacted that where a Petition for a Charter of Incorporation is referred to the Committee of His Majesty's Most Honourable Privy Council and it is proposed by the Charter to extend the Municipal Corporation Acts to the Municipal Borough to be created by the Charter the said Committee of the Council may settle a Scheme for the purposes in the said Acts named and containing such provisions as are in the said Acts particularized:

And whereas on the 10th October 1911 certain inhabitant householders of the Urban Districts of Buxton and Fairfield in the county of Derby petitioned His Majesty the King praying for the grant of a Charter of Incorporation:

And whereas the said Petition for a Charter was referred to the Committee of Council and it was proposed by the Charter to create the Urban District of Buxton together with that part of the Urban District of Fairfield comprised within the limits defined in that behalf in the Charter a municipal borough by the name of the "Borough of Buxton" and to incorporate the inhabitants thereof and to extend the Municipal Corporation Acts to the borough to be created by the Charter:

And whereas it is proposed to exclude from the borough an outlying portion of the parish or township of Fairfield now forming part of the Urban District of Fairfield and it is expedient to constitute such excluded portion a separate parish forming part of the Rural District of Chapel-en-le-Frith in the said county of Derby but except for such exclusion the area of the proposed borough is the same as the area of the said Urban Districts of Buxton and Fairfield combined:

And whereas the Local Government Board have made the following Orders in pursuance of Section 33 of the Local Government Act 1894 viz.: (A) on the 23rd day of March 1895 conferring upon the Buxton Urban District Council the power of appointing overseers of the poor for the parishes or townships of Buxton and Burbage within the said district (B) on the 16th day of October 1896 transferring to the Buxton Urban District Council the power of appointing and revoking the appointment of any assistant overseer for the said parishes or townships (C) on the 12th day of September 1896 conferring upon the Buxton Urban District Council the powers of a Parish Council under

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(*Buxton Scheme Confirmation*) Act, 1916.

A.D. 1916. paragraphs (α) (η) (ι) and (κ) of Sub-section (1) of Section 8 of the
— said Act of 1894 and (ν) on the 20th day of November 1896 conferring
on the Buxton Urban District Council the powers of a Parish Council
under paragraphs (A) and (c) (i) of Sub-section (1) of Section 6 of the
said Act of 1894:

And whereas the Urban District Council of Buxton have and are
exercising divers powers relating to Gas and Water Supply Electric
Lighting and other matters including the control management and
carrying on of a Pump Room and a mineral Water Baths Undertaking
under the following Acts and Provisional Orders or some of them
which Acts and Orders except so far as the same have been amended
or repealed are in force within the Urban District of Buxton that is
to say:—

The Buxton Gas Act 1870;

The Buxton Local Board Act 1873;

A Provisional Order made by the Local Government Board
bearing date the 19th May 1873 and confirmed by the Local
Government Board's Provisional Orders Confirmation Act 1873
(No. 2);

A Provisional Order made by the Local Government Board
bearing date the 6th June 1873 and confirmed by the Local
Government Board's Provisional Orders Confirmation Act 1873
(No. 4);

A Provisional Order made by the Local Government Board
bearing date the 20th May 1873 and confirmed by the Local
Government Board's Provisional Orders Confirmation Act 1873
(No. 5);

A Provisional Order made by the Local Government Board
bearing date the 12th March 1878 and confirmed by the Local
Government Board's Provisional Orders Confirmation (Abingdon
&c.) Act 1878;

A Provisional Order made by the Local Government Board
bearing date the 12th May 1880 and confirmed by the Local
Government Board's Provisional Orders Confirmation (Abingdon
&c.) Act 1880;

A Provisional Order made by the Local Government Board
bearing date the 10th May 1881 and confirmed by the Local
Government Board's Provisional Orders Confirmation (Acton &c.)
Act 1881;

A Provisional Order made by the Local Government Board
bearing date the 4th May 1886 and confirmed by the Local
Government Board's Provisional Orders Confirmation (No. 4)
Act 1886;

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The Buxton Local Board Act 1892 ;

A Provisional Order made by the Local Government Board bearing date the 2nd April 1892 and confirmed by the Local Government Board's Provisional Orders Confirmation Act 1892 ;

The Buxton Electric Lighting Order 1894 confirmed by the Electric Lighting Orders Confirmation (No. 1) Act 1894 ;

A Provisional Order made by the Local Government Board bearing date the 24th March 1897 and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1897 ;

A Provisional Order made by the Local Government Board bearing date the 1st April 1901 and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1901 ;

The Buxton Urban District Council Water Act 1902 ;

The Buxton Urban District Council Act 1904 ;

A Provisional Order made by the Local Government Board bearing date the 4th July 1911 and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1912 ;

A Provisional Order made by the Local Government Board bearing date the 7th March 1916 and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1916 :

And whereas the Urban District Council of Fairfield have and are exercising divers powers relating to water supply within the Urban District of Fairfield under and by virtue of the Fairfield Local Board Waterworks Act 1874 and under a Provisional Order made by the Local Government Board bearing date the 26th February 1875 and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1875 :

And whereas the Urban District Council of Buxton under the powers conferred upon them by the hereinbefore recited Acts and Provisional Orders or some of them own the following Undertakings and properties (namely) The Buxton Gasworks Waterworks Electric Lighting Sewage and Destructor Works a Cemetery Town Hall Offices Public Library and Museum Pump Room and Mineral Water Baths a Fire Station Isolation Hospital Surveyor's house cottages stables and slaughter-house and other properties incidental and in addition thereto and the Urban District Council of Fairfield under the powers conferred upon them by the said recited Act of 1874 own the Waterworks Undertaking from which water is being supplied to the inhabitants of the Fairfield Urban District Sewage Works Public Offices store yard Water Swallows Green and interest in Fairfield Common and other

A.D. 1916. — properties incidental and in addition thereto and both the said Councils have contracted loans in respect of the said Undertakings and properties or some of them and otherwise for the purpose of providing for the proper administration of their districts respectively balances of which loans remain outstanding :

And whereas the Urban District Council of Buxton then the Buxton Local Board on the 1st day of June 1864 purchased from the seventh Duke of Devonshire then the owner thereof the right to hold and maintain and take tolls in respect of the use of a market in the town of Buxton within the Urban District of Buxton and on the 27th October 1876 purchased a site for the purposes of and provided and still maintain a cattle market and markets are regularly held accordingly subject to the payment of tolls and charges to the Council in respect thereof :

And whereas the following Acts have been adopted by and are now in force in the district of the Urban District Council of Buxton that is to say :—

The Infectious Disease (Notification) Act 1889 ;

The Infectious Disease (Prevention) Act 1890 ;

The Infectious Disease (Notification) Extension Act 1899 ;

The Public Health Acts Amendment Act 1890 ;

The Museums and Gymnasiums Act 1891 so far as it relates to Museums ; and

The Public Libraries Act 1892 ;

and the following Acts have been adopted by and are now in force in the district of the Urban District Council of Fairfield that is to say :—

The Public Health Acts Amendment Act 1890 Part III. ;

The Infectious Disease (Prevention) Act 1890 ; and

The Infectious Disease (Notification) Extension Act 1899 ;

and it is expedient that the adoptive Acts should be made to apply uniformly throughout the borough :

And whereas by an Order made by the Local Government Board dated the 18th day of September 1913 the following sections and Part of the Public Health Acts Amendment Act 1907 were declared to be in force in the Urban District of Buxton as from the 30th day of October 1913 that is to say :—

Sections 17 19 20 21 22 23 27 28 29 30 31 32 and 33 comprised in Part II. ;

Sections 34 35 36 37 38 39 40 41 42 45 46 47 48 49 50 and 51 comprised in Part III. ;

Sections 52 53 54 55 56 57 58 59 60 61 62 63 64 65 and 66 A.D. 1916.
comprised in Part IV.; and

Part X.;

subject to the conditions and adaptations and repeals of sections of the Buxton Urban District Council Water Act 1902 in the said Order mentioned:

And whereas under the powers of the Public Health Acts and other Acts them thereunto enabling the Urban District Council of Buxton (previously to the coming into force of the Local Government Act 1894 styled the Buxton Local Board) have made the following bye-laws and the same are now in force in their said district (namely) with respect to nuisances and with respect to nuisances in connection with the removal of offensive or noxious matters markets omnibuses &c. horses ponies mules and asses the cemetery sanitary conveniences underground bakehouses luggage porters hackney carriages &c. pleasure grounds and new streets and buildings and also a Schedule of Tolls leviable by the Council in the markets belonging to them:

And whereas under the Public Health Acts the Urban District Council of Fairfield (then styled the Fairfield Local Board) have made bye-laws with respect to new streets and buildings and the same are now in force in the Urban District of Fairfield:

And whereas the Buxton and Fairfield Urban District Councils have both made Regulations under the Dairies Cowsheds and Milkshops Order 1885 which Regulations are now in force in their respective districts:

And whereas the County Council of the County of Derby have made bye-laws for the good rule and government of the Administrative County of Derby and the same are now in force in the Urban Districts of Buxton and Fairfield:

And whereas by an Order dated the 24th day of January 1896 made by the said Derbyshire County Council under the Isolation Hospitals Act 1893 the Urban District of Fairfield and other areas were formed into a United District called the High Peak Joint Hospital District:

And whereas it is intended that arrangements shall be made for the consolidation of the Police Force of the Borough of Buxton when constituted by Charter with the Police Force of the County of Derby:

And whereas the Buxton Urban District Council is an authority having powers under the Education Act 1902 and has under Section 17 of that Act established an Education Committee constituted in accordance with a Scheme made by the Council and approved by the Board of Education:

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And whereas the Buxton and Fairfield Urban District Councils are local authorities within the meaning of the Municipal Corporation Acts 1882 and 1885 :

And whereas this Scheme before being settled by the Committee of Council was referred for consideration to His Majesty's Principal Secretary of State for the Home Department the Board of Trade the Local Government Board and the Board of Education :

And whereas it is expedient that a Scheme should be made and settled containing the provisions hereinafter set forth :

Now therefore pursuant to the Municipal Corporation Acts 1882 and 1885 and the Local Government Act 1894 and every other power enabling them in that behalf the Committee of Council have settled a Scheme containing the provisions herein and do hereby direct order and declare as follows :—

PRELIMINARY PROVISIONS.

1. This Scheme may be cited for all purposes as the Borough of Buxton Scheme 1916.

2. The Mayor Aldermen and Burgesses of the Borough of Buxton are in this Scheme referred to as "the Corporation."

3. This Scheme when confirmed shall come into operation on the day of the first meeting of the Council of the Municipal Borough created by the said Charter and this Scheme shall be construed and applied as if it had been dated and confirmed by Parliament or Order in Council on the day before the day of the said first meeting and everything thereunder shall be done and had accordingly This date is hereinafter referred to as "the commencement of this Scheme" So far as may be necessary this Scheme shall operate retrospectively.

4. From and after the commencement of this Scheme the Municipal Borough created by the said Charter shall be placed within the jurisdiction of the Corporation acting by the Council of the borough as the Sanitary Authority and as the Local Education Authority for the purposes of Part III. of the Education Act 1902 (as the case may be) of the said borough.

5. The Buxton and Fairfield Urban District Councils and their powers duties rights obligations and privileges shall respectively continue and be deemed to have respectively continued to exist until the commencement of this Scheme unaffected in any manner whatsoever by the grant of the said Charter or the creation of the said borough From and after the commencement of this Scheme the said Urban District Councils shall be and the same are hereby abolished and the respective powers rights duties obligations and privileges thereof shall cease and determine.

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6. All the jurisdiction powers rights duties and property respectively vested in or possessed by the said Urban District Councils or by any person or body in trust for them or any of their members as such (and not otherwise dealt with or transferred by or under any part of this Scheme) shall vest in the Corporation and shall be exercised held and applied for the municipal and public purposes of the said Borough.

The hereinbefore recited Orders of the Local Government Board under Section 33 of the Local Government Act 1894 dated respectively the 23rd day of March 1895 the 16th day of October 1896 the 12th day of September 1896 and the 20th day of November 1896 shall continue in force and effect in the Borough and in favour of the Corporation as fully as they have been in the Urban District of Buxton and in favour of the Buxton Urban District Council.

7. All duties and liabilities which immediately before the commencement of this Scheme respectively attached to and were enforceable against the said Urban District Councils or the property thereof shall attach to and be enforceable against the Corporation except as otherwise provided by this Scheme.

8. Any investigation legal proceedings or remedy in respect of any debt liability penalty or forfeiture due to or incurred by or on behalf of the said Urban District Councils respectively before the commencement of this Scheme may be continued prosecuted or enforced by or against the Corporation.

9. From and after the commencement of this Scheme all that part of the parish or township and Urban District of Fairfield situate beyond the borough shall become and be a separate parish by the name of Green Fairfield and form part of the union of Chapel-en-le-Frith in the county of Derby.

10. Every person who shall on or before the commencement of this Scheme have acquired a settlement in the existing parish or township of Fairfield shall be deemed to have acquired such settlement in the parish or township comprising the area in which the acts or circumstances conferring such settlement shall have been done or taken place or if such acts or circumstances shall have been done or taken place in more than one such area such settlement shall be in the parish or township comprising the place of residence of such person at the time of acquiring such settlement Any person who shall have become irremovable from the existing parish or township of Fairfield shall be deemed to have become irremovable from the parish or township comprising the area in which he shall reside at the commencement of this Scheme or if he shall then be in receipt of relief shall be deemed to be irremovable from the parish

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11. Notwithstanding the alteration of parish effected by this Scheme all contribution orders made by the Guardians of the Poor of the Chapel-en-le-Frith Union shall be as valid in law as if this Scheme had not been made.

12. All recoverable arrears of the poor rates due at the time when this Scheme comes into operation shall be recovered by the overseers of the existing parish or township of Fairfield as if such parish had not been altered by this Scheme.

13. Until a new valuation list is made the portion of the valuation list of the parish or township of Fairfield which relates to hereditaments in the portion of the said parish or township which is hereby constituted a separate parish shall be deemed to be the valuation list of such separate parish and the remaining portion of the valuation list of the said parish or township of Fairfield shall be deemed to be the valuation list of such remaining portion of that parish or township.

14. The area beyond the borough by this Scheme constituted a separate parish or township by the name of Green Fairfield shall as from the commencement of this Scheme be annexed to and form part of the Rural District of Chapel-en-le-Frith.

15. The term "property" in this Scheme means and includes all property real and personal and all things in action and all rights of common and commonable rights and rights to toll and all franchises privileges and rights which have any pecuniary value and all Charters Records Deeds Books and documents and all rights and all claims to relief and all rights to avoid contracts or otherwise and includes any estate or interest legal or equitable in or in respect of any property so defined.

16. The District Fund and General District Rate of the Borough of Buxton shall subject to this Scheme for all purposes whatsoever (subject to the provisions of the Municipal Corporations Act 1882 with respect to the Borough Fund and Borough Rate and Watch Rate respectively) take the place of and be substituted for the District Fund and General District Rate respectively of the Buxton and Fairfield Urban District Councils and all sums of money respectively payable to from or out of and all liabilities charged upon or attaching to the District Fund and General District Rate of the said Urban Districts shall (subject as aforesaid) be paid to from or out of and shall be charged upon the said District Fund and General District Rate of the said Borough respectively.

17. All the rights interests powers property privileges liabilities or obligations vested in or attached to the Buxton Urban District Council under the following local Acts and Provisional Orders viz. :—

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The Buxton Gas Act 1870 ;

The Buxton Local Board Act 1873 ;

A Provisional Order made by the Local Government Board bearing date the 19th May 1873 and confirmed by the Local Government Board's Provisional Orders Confirmation Act 1873 (No. 2) ;

A Provisional Order made by the Local Government Board bearing date the 6th June 1873 and confirmed by the Local Government Board's Provisional Orders Confirmation Act 1873 (No. 4) ;

A Provisional Order made by the Local Government Board bearing date the 20th May 1873 and confirmed by the Local Government Board's Provisional Orders Confirmation Act 1873 (No. 5) ;

A Provisional Order made by the Local Government Board bearing date the 12th March 1878 and confirmed by the Local Government Board's Provisional Orders Confirmation (Abingdon &c.) Act 1878 ;

A Provisional Order made by the Local Government Board bearing date the 12th May 1880 and confirmed by the Local Government Board's Provisional Orders Confirmation (Abingdon &c.) Act 1880 ;

A Provisional Order made by the Local Government Board bearing date the 10th May 1881 and confirmed by the Local Government Board's Provisional Orders Confirmation (Acton &c.) Act 1881 ;

A Provisional Order made by the Local Government Board bearing date the 4th May 1886 and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1886 ;

The Buxton Local Board Act 1892 ;

A Provisional Order made by the Local Government Board bearing date the 2nd April 1892 and confirmed by the Local Government Board's Provisional Orders Confirmation Act 1892 ;

The Buxton Electric Lighting Order 1894 confirmed by the Electric Lighting Orders Confirmation (No. 1) Act 1894 ;

A Provisional Order made by the Local Government Board bearing date the 24th March 1897 and confirmed by the Local

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Government Board's Provisional Orders Confirmation (No. 2) Act 1897 ;

A Provisional Order made by the Local Government Board bearing date the 1st April 1901 and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1901 ;

The Buxton Urban District Council Water Act 1902 ;

The Buxton Urban District Council Act 1904 ;

A Provisional Order made by the Local Government Board bearing date the 4th July 1911 and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1912 ;

A Provisional Order made by the Local Government Board bearing date the 7th March 1916 and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1916 ; and

Under any other Statute Order Bye-law or Regulation ;
and all the rights interests powers property privileges liabilities or obligations vested in or attached to the Fairfield Urban District Council under the following Act and Provisional Order viz. :—

The Fairfield Local Board Waterworks Act 1874 ; and

A Provisional Order made by the Local Government Board bearing date the 26th February 1875 and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1875 ; or

Under any other Statute Order Bye-law or Regulation ;
shall pass to devolve upon be exerciseable by or against vested in or attached to the Corporation acting by the Council as the Sanitary Authority of the Borough and from and after the commencement of this Scheme the Corporation shall be and continue the legal successors of the Urban District Councils respectively for all purposes The Town Clerk of the Borough shall be substituted for and perform the duties of the Clerks to the District Councils respectively :

Provided always that in respect of the execution of their powers and duties under the Buxton Urban District Council Water Act 1902 and the Fairfield Local Board Waterworks Act 1874 if any difficulty shall arise in securing uniformity owing to any inconsistency between the provisions of those Acts respectively the provisions of the Buxton Act of 1902 shall prevail and shall be deemed in respect of the matter as to which such inconsistency exists to be in full force and effect throughout the Borough and the provisions of the Fairfield Act of 1874 shall in that respect be deemed to be altered or repealed.

18. The adoptive Acts hereunder mentioned which have been adopted by the Buxton Urban District Council as hereinbefore recited shall from the commencement of this Scheme be in force throughout the Borough as if the same had been adopted by the Council thereof after the creation of the said Borough viz.:—

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The Infectious Disease (Notification) Act 1889;

The Infectious Disease (Prevention) Act 1890;

The Infectious Disease (Notification) Extension Act 1899;

The Public Health Acts Amendment Act 1890;

The Museums and Gymnasiums Act 1891 so far as it relates to Museums; and

The Public Libraries Act 1892;

and so much of the said Acts as is in force within the Chapel-en-le-Frith Rural District shall continue in force in that District as enlarged by this Scheme and so much of the said Acts as is not in force within the said Rural District shall cease to be in force in the area added to that District by this Scheme but without prejudice to any rights privileges obligations or liabilities acquired accrued or incurred under the said Acts with respect to such area at the commencement of this Scheme.

19. The Order of the Local Government Board dated the 18th September 1913 declaring certain provisions of the Public Health Acts Amendment Act 1907 to be in force in the Urban District of Buxton as hereinbefore recited shall (subject to the provisions of any Order which may be hereafter made by the said Board) have effect as if the said Order had declared such provisions to be in force throughout the Borough.

20. The bye-laws under the Public Health Acts and Incorporated Acts and provisions and the regulations under the Dairies Cowsheds and Milkshops Order 1885 and the Schedule of Tolls leviable in the market belonging to the council made by the Urban District Council of Buxton as hereinbefore recited shall from and after the commencement of this Scheme and until duly repealed altered or revoked be and continue in force and have operation throughout the Borough in like manner and with the like effect as if the Corporation acting by the Council and their officers had made the same and as if the Corporation and their officers and the Borough were referred to therein instead of the Urban District Council of Buxton and their officers and the District and any bye-laws and regulations made by the Urban District Council of Fairfield shall cease to operate without prejudice nevertheless to any rights privileges obligations or liabilities acquired accrued or incurred thereunder at the commencement of this Scheme. Provided that the bye-laws with respect to nuisances

A.D. 1916. and with respect to nuisances in connection with the removal of offensive or noxious matters in force in the Urban District of Buxton shall continue in force for a period of two years only after the commencement of this Scheme unless repealed before the expiration of that period.

21. The bye-laws for the good rule and government of the Administrative County of Derby so far as they are in force in the Urban Districts of Buxton and Fairfield shall continue in force and be enforced within the Municipal Borough of Buxton until the expiration of two years from the commencement of this Scheme or until other bye-laws for good rule and government made by the Corporation shall have come into force whichever shall first occur.

22. From and after the commencement of this Scheme the Council of the Borough of Buxton shall be the local authority for the purposes of the Employment of Children Act 1903.

23.—(A) Any Order made under the Shop Hours Act 1904 or under the Shops Act 1912 and in force immediately before the commencement of this Scheme in the Urban Districts of Buxton and Fairfield shall unless and until it is revoked remain in force within the Municipal Borough of Buxton.

(B) Any Order made under the Shop Hours Act 1904 or under the Shops Act 1912 and in force immediately before the commencement of this Scheme in the Urban District of Fairfield shall cease to be in force in the area beyond the borough constituted a separate parish or township by the name of Green Fairfield.

24.—(A) From and after the commencement of this Scheme the Council of the borough of Buxton shall be the Local Education Authority for the purposes of Part III. of the Education Act 1902 and the Scheme for the establishment of an Education Committee made by the Buxton Urban District Council as hereinbefore recited on the fourth day of June 1914 under Section 17 of the said Act shall have effect as if for reference in that Scheme to the Urban District Council were substituted references to the Council of the Borough.

(B) All public elementary schools situate in the Borough and provided by the County Council of the county of Derby and all other lands so situate and vested in the County Council for purposes of Part III. of the Education Act 1902 with the furniture fittings books and apparatus of the schools and schoolhouses and such of the furniture fittings books and apparatus of non-provided schools as belong to the County Council shall in each case from and after the commencement of this Scheme be transferred to and vested in the Council of the Borough as the Local Education Authority for the Borough for all the estate and interest therein of the said County Council as the Local Education

Authority and all contracts debts and liabilities which at the commencement of this Scheme are existing or are owing by or attached to the said County Council in respect exclusively of the said public elementary schools or lands furniture fittings books or apparatus or of any other public elementary school in the said Borough or with respect to the officers teachers and servants of any public elementary schools in the Borough shall from and after the commencement of this Scheme enure to and be carried into effect by the Council of the Borough as the Local Education Authority.

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(c) The liability for the repayment of so much of any loan raised exclusively in respect of any public elementary school or of any lands furniture fittings books or apparatus transferred to and vested in the Council of the Borough by virtue of this Scheme as is owing at the commencement thereof and the liability for the payment of the interest on such part of any such loan shall on the commencement of this Scheme be transferred and attached to the Council of the Borough as the Local Education Authority and shall be charged on the Borough Fund and the Borough Rate of the said Borough and each such loan shall be repaid by the Council of the Borough within the period (if any) for which the loan was originally sanctioned or within which the loan is otherwise required to be repaid or is made repayable.

(d) Any bye-laws made under the Education Acts 1870 to 1911 in force in the Borough immediately before the commencement of this Scheme shall from and after that day apply until revoked or altered by the Council of the Borough.

(e) All managers of public elementary schools within the Borough who were appointed by the County Council of the county of Derby shall at the commencement of this Scheme vacate office.

(f) Paragraph 22 of the Second Schedule to the Education Act 1902 shall apply and have effect with respect to any adjustment which for the purposes of the Education Acts 1870 to 1911 is required by reason of anything in or done in pursuance of any provisions of this Scheme.

25. All mortgages stock charges loans and debts of the Buxton and Fairfield Urban District Councils shall be the mortgages stock charges loans and debts of the Corporation and all mortgages of and charges upon the undertakings rates and property of the said Urban District Councils respectively shall be mortgages of and charges upon the same undertakings district fund general district rate and property of the Corporation.

26. All arrears of any general district rates and other rates and payments which on the commencement of this Scheme are due or are owing to the Buxton and Fairfield Urban District Councils or either

A.D. 1916. of them in respect of hereditaments beyond the Borough may be collected levied and recovered by the Corporation.

27. If at any time the district fund and general district rate of the Borough are insufficient to provide the sums required for interest or repayment of principal on or in respect of any money borrowed wholly or partly on the security of the district fund or general district rate of the Urban District Council of Fairfield then (but not otherwise) notwithstanding anything in this Scheme the rights of the creditors against the part of the said Urban District excluded from the Borough shall be deemed to be subsisting and the Rural District Council of Chapel-en-le-Frith shall if required by one-third in value of the creditors or by an Order of any competent Court levy or cause to be levied in or upon the part of the said Urban District excluded from the Borough such portion of the said moneys then due and unpaid as bears the same proportion to the whole of the said moneys then due and unpaid as the then rateable value for sanitary purposes of the property in such excluded part bears to the sum of such rateable value together with the rateable value for sanitary purposes of the property in the part of the said Urban District included within the Borough and the said Rural District Council shall levy and cause to be levied from or in the said excluded part the said portion of the said moneys by the same means and in the same manner as nearly as may be as contributions for special expenses are levied under the Public Health Act 1875 Any sum or sums paid by the said Rural District Council under this clause shall and may be recovered by the said Rural District Council as a debt due to the said Rural District Council from the Corporation and any sum or sums so repaid by the Corporation shall be treated as contributions for special expenses or shall be made applicable in such other way as the Rural District Council with the consent of the Local Government Board may determine.

28. An equitable adjustment shall be made as regards the property (if any) and the debts and liabilities of the township or parish of Fairfield as existing before the date of the Charter as between the respective parts thereof dealt with by the Charter and this Scheme and also as regards the property (if any) and the debts and liabilities of the Fairfield Urban District Council as between or in respect of the parts thereof included in the Borough and transferred to the Rural District of Chapel-en-le-Frith respectively Any such adjustment may be made by and between the Councils or Authorities concerned by agreement or failing agreement shall be settled by arbitration in the manner provided by Section 68 of the Local Government Act 1894 as if the adjustment were under and for the purposes of that Act and the provisions of that section as far as applicable with the necessary

modifications shall apply with respect to the objects and purposes of the adjustment and the borrowing and application of capital moneys and otherwise as may be found convenient provided that as regards any sum payable by the Rural District Council of Chapel-en-le-Frith the sum shall be charged on the parish of Green Fairfield as if it were in respect of special expenses incurred on account of that parish under the provisions of the Public Health Act 1875. A.D. 1916

29. Notwithstanding the exclusion from the borough of the portion of Fairfield District by this Scheme constituted a separate parish or township the Corporation may supply gas within the whole of the limits defined or referred to in the Buxton Gas Act 1870 as amended by the Chapel Whaley and District Gas Act 1911 under and subject to the terms and provisions of those Acts respectively.

30. Notwithstanding the incorporation of the borough and the provisions of this Scheme all rates assessments orders apportionments notices compositions charges mortgages contracts leases conveyances deeds documents acts matters and things made entered into given or done before the commencement of this Scheme by to or with reference to the Buxton and Fairfield Urban District Councils or either of them shall be as good and valid and effectual to all intents and purposes whatsoever for against and with reference to the Corporation instead of the said Urban District Councils respectively and may be proceeded on and enforced in the same manner in all respects as if the Corporation instead of such Council had been party or privy to the same and been named or referred to therein.

31. In case any officer of the Urban District Council of Buxton or the Urban District Council of Fairfield or the said County Council in respect of elementary education in either of the districts included in the Borough who shall have been employed by such Council for a period of not less than five years shall not be employed by the Council of the Borough nor offered by the last-mentioned Council a position in their employ of a similar character and of an equal value to that formerly held by him he shall be entitled to be paid by way of compensation for the loss of his position out of the funds of or under the control of the Corporation acting by the Council as the Sanitary Authority or Education Authority (as the case may be) for the said Borough and the amount to be paid in each case shall be determined in accordance with the provisions of Section 120 of the Local Government Act 1888 and Sub-sections (1) to (7) inclusive of that section shall apply as if they formed part of this Scheme with the substitution of the words "Borough Council" for "County Council" and "this Scheme" for "this Act" and with such other modifications as are necessary to make them applicable thereto:

A.D. 1916.
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Provided nevertheless that if any officer be so employed by the said Corporation and discharged by them (otherwise than for misconduct) within four years of the commencement of this Scheme he shall be entitled to compensation in the same manner as if he had not been employed by the said Corporation :

Provided also that the term "Officer" shall include only persons employed by the said Urban District Councils respectively whose salaries or emoluments are payable at intervals of not less than one month and no other persons.

The provisions of this clause shall apply to a teacher employed in any public elementary school at the commencement of this Scheme within either of the aforesaid districts as if he were an officer employed by the County Council provided that in the case of a teacher employed in a non-provided school the provisions hereinbefore contained shall only apply if such teacher be discharged by the Corporation or by the direction or with the consent of the Corporation (otherwise than for misconduct) within four years of the commencement of this Scheme.

32. The accounts of the Buxton and Fairfield Urban District Councils and their officers shall be made up to the date of the commencement of this Scheme and shall be (as soon as conveniently may be) audited by the District Auditor in like manner and subject to the like powers duties provisions and right of appeal as if the Charter had not been granted and the provisions of Section 247 and 250 of the Public Health Act 1875 as amended by the District Auditors Act 1879 and any regulations duly issued by the Local Government Board with respect to the audit of accounts of Local Boards or Urban District Councils and of their officers shall apply to such audit and the provisions of this Scheme with respect to the District Councils shall be construed so as to admit of such exceptions as may be necessary to enable such audit to be duly made but such exceptions shall be strictly limited in time extent character and operation to the purposes of such audit Any money certified to be due from any person by the District Auditor at such audit shall be paid by such person to the Treasurer of the Borough.

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